

**LAHORE HIGH COURT,
RAWALPINDI BENCH RAWALPINDI
JUDICIAL DEPARTMENT**

Writ Petition No.2833 of 2025

Sardar Aftab Ishaq Khan
Vs.
Government of the Punjab & 3 others

J U D G M E N T

Date of Hearing	24.10.2025
Petitioner by	Agha Muhammad Ali Khan, Advocate
Assistant Advocate General	Mr. Abid Aziz Rajori, Assistant Advocate General along with Kamran Sagheer Additional Deputy Commissioner Murree.
Respondent No.4	Mr. Asad Iqbal Abbasi, Advocate /Legal Advisor

MALIK MUHAMMAD AWAIS KHALID, J. The petitioner has filed instant constitutional petition with the following prayer:-

- “a) The respondents be directed to perform their duty under the law and take all steps necessary to preserve and protect, immediately and without further delay, the aforesaid historical architectural remains, including by declaring it a 'protected antiquity' under the Act;*
- b) To direct immediate cessation of all commercial activity from the site, precincts, and parameters of the said site and remains,*
- c) To direct the Punjab's Archaeology Department to work alongside a University to restore the effaced foundations and to support and rejuvenate all those walls that can still be salvaged, together with plaques describing the history of the place,*

d) To integrate the said historical architectural remains with the adjoining Animal Park as an integrated tourist attraction,

e) Pass such further directions as may be necessary to prevent the land mafias from encroaching on the said lands,

f) Alternatively, if the respondents contend the applicability of the Antiquities Act, 1975, within Punjab, and if this Honourable Court agrees therewith, then the aforesaid prayers may be granted under the provisions of the Punjab Special Premises (Preservation) Ordinance, 1985, and/or any other statute that caters for the preservation of the historical ruins in question,

g) Any other relief which this Honourable Court deems fit and proper may also be granted.”

2. Brief facts leading to file this constitution petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "**constitution**") are that petitioner being the resident of local area is invoking the jurisdiction of this Court regarding the inability of respondents to preserve the historical sites under Section 19 of the Antiquities Act, 1975 (Act No.VII of 1976) (the "**Act**"). Learned counsel further submits that residual ruins of the Murree Brewery at Ghora Gali, Tehsil Murree, qualify as an 'immoveable architectural antiquity' under section 2(g) of the Act and that these are ancient products of human activity, illustrative of architecture about 200 years ago reflecting the British colonial footprint, leading eventually to the Murree Hills becoming a coveted tourist destination, and therefore reflect a historical aspect of

our civilization, but the respondents have failed to preserve this historical site. In the light of Section 19 of the Act, which is reproduced as under:

19. Prohibition of destruction, damage, etc., of protected antiquities.

(1) No person shall, except for carrying out the purposes of this Act, destroy, break, damage, alter, injure, deface or mutilate or scribble, write or engrave any inscription or sign on, any antiquity or take manure from any protected antiquity.

(2) Whoever contravenes the provisions of subsection (1) shall be punishable with rigorous imprisonment for a term which may extend to three years, or with fine, or with both.

(3) The Court trying an offence under subsection (2) may direct that the whole or any part of the fine recovered shall be applied in defraying the expenses of restoring the antiquity to the condition in which it was before the commission of the offence.

Hence, this petition. In response, notices were issued to respondents, who submitted their comprehensive report and summery regarding protection of ruins of Murree Brewery at Ghora Gali being immoveable architectural antiquity.

3. This constitutional petition is filed in the public interest, in order to protect and preserve ruins of Murree Brewery. It has been transpired from the report of respondents No.1 & 2 that Murree Brewery Company Limited, established in 1860 at Ghora Gali, near the hill station of Murree, was founded to meet the requirements of the British military and civilian personnel stationed in the region. The brewery was managed by the family of Edward Dyer, father of Colonel Reginald Dyer, who is infamously remembered for the tragic

Jallianwala Bagh massacre on 13th April 1919 in Amritsar. During 1920s, owing to the scarcity of water in Murree, brewing operations were shifted to Rawalpindi, while malting continued at Ghora Gali until 1940s. The original brewery complex, designed in Gothic architectural style, suffered extensive damage when it was set ablaze in year 1947. Report forwarded by respondents No.1 & 2 is reproduced as under:

“At present, the surviving structures and remnants of the Murree Brewery are in an extremely dilapidated and precarious condition. The remains are scattered over a vast area, largely engulfed by wild vegetation, debris, and garbage. The roofs of all structures have collapsed, and prolonged exposure to snowfall, rainwater, and environmental factors has caused severe deterioration of the masonry and structural integrity of the site.

It is stated that a meeting was convened on 21st June, 2023 under the Chairmanship of the Commissioner, Rawalpindi Division, wherein it was resolved to undertake conservation of the remnants of the historic Murree Brewery. In pursuance of this decision, the Deputy Director (SRO), Taxila and Archaeological Conservator, Taxila, conducted a detailed inspection of the existing structures of Murree Brewery and subsequently submitted comprehensive report to the Commissioner, Rawalpindi Division, on 26th June, 2023. (Copy of report is attached herewith as Annexure-A)

Subsequently, another meeting was held on 5th July, 2023, under the auspices of the Director (Planning), Commissioner's Office, Rawalpindi, to deliberate upon the proposed conservation measures. During the meeting, M/s COMRADES Planning & Design Consultants (Pvt.) Ltd., Islamabad, delivered a presentation titled "Brewery Rehabilitation & Adaptive Reuse." It was further apprised that the ownership of the Murree Brewery premises remains disputed, and the matter is currently under adjudication. (Copy of brief is attached herewith as Annexure-B)

The Directorate General of Archaeology has approached the Deputy Commissioner, Rawalpindi, requesting for the provision of the requisite land record, ownership documents, Aks Shajra, and No Objection Certificate (NOC) from the present owner to initiate the protection and conservation work of the historic structure/remains of Murree Brewery. (Copy of All the letters written to Concerned Deputy Commissioner are enclosed herewith as Annexure-C)

The Directorate General of Archaeology, Government of the Punjab, is entrusted with the mandate to preserve, conserve, and protect cultural heritage sites and monuments duly declared as Protected Antiquities under the provisions of the Antiquities Act, 1975, and as Special Premises under the Punjab Special Premises (Preservation) Ordinance, 1985. Concerning the issue of Murree Brewery, a comprehensive proposal was earlier prepared by the Directorate General of Archaeology for the protection and conservation of the historic Murree Brewery site. A note has already sent to Secretary Office. (Copy of letter written to Secretary Office and a copy of proposal for conservation are attached herewith as Annexure-D)

In view of the architectural and historical significance of the site mentioned in the writ petition, the Directorate General of Archaeology has no objection to declare it special premises under Special premises (Preservation) Ordinance 1985 and is ready to take measures for its protection and conservation.

It is further submitted that a note shall be initiated for submission to the Secretary, proposing its declaration as a "Special Premises" under the relevant provisions of law after obtaining the requisite revenue record. Upon its declaration as a Special Premises, the assessment of expenditure and preparation of detailed scope of work will be undertaken accordingly.

4. The respondent No.3, present in the Court, submits that he visited the site and confirms that the said place has its importance in the history, cultural and heritage point of view

and matter regarding the removal of encroachment in its surrounding was taken up with respondent No.1. Moreover, revenue record has been transmitted to respondent No.2 to expedite the matter. He further submits that site will be protected in all aspects.

5. The hectic efforts of respondent No.3, who visited the site can be visualized from his report, which is reproduced as under:

“The subject property falls in Mauza "Murree Brewery". The details of land where the built-up structure of Murree Brewery exists is as follows:

Murree Brewery Khewat No.1, Khasra No.10 min, Owner Provincial Government, Possessor Provincial Government, Area 622 Kanal (Total Area of Subject Khasra) 21 Kanal Covered Area Murree Brewery, 06 Kanal Built-up Structure Area
(Land record and site map attached at Annexure-A).

Steps Taken for Protection of the Ruins of Murree Brewery at Ghora Gali, Murree:

1. Cordoning off the property with pillars and barbed wire to avoid trespassing.
2. Deployment of monitoring and enforcement inspectors as per local government act to pre-empt illegal possession on government land. (Duty roster attached as Annexure-B)
3. Surveillance through PERA force (Duty roster attached as Annexure-C)

Recommendations for Preservation of Murree Brewery:

Subject site consists of remains of the old structure that has withered over time. Dilapidated roofless gothic style structure needs technical expertise for its preservation. To achieve this goal legally, first step is to declare the site as a "Special Premises" in light of The Antiquities Act, 1975 by the Competent Authority. In this regard, letter no DGA-II(101)/Arch/2025/1158 dated 03.10.2025 by

Directorate General of Archaeology, Tourism and Museums Department, Government of the Punjab has been responded vide letter no. 599/DC/Murree dated 04.10.2025 (copy attached as Annexure-D).

While the district administration is keeping a vigilant eye to protect the historical structure, the **Preservation** ought to be timely spearheaded by the Directorate General of Archaeology, Tourism and Museums Department, Government of the Punjab for its subsequent beautification, landscaping and its use as a museum etc.”

6. Respondent No.2 apprised the Court that for declaration of Murre Brewery as Special Premises under the Punjab Special Premises (Preservation) Ordinance, 1985, summary was forwarded to Chief Minister, Punjab to place the same before Provincial Cabinet for approval of the proposal. Said summary is reproduced as under:

“The Director General of Archaeology, Government of the Punjab has stated that the Directorate General of Archaeology intends to declare Murree Brewery as "Special Premises under Section 2(a) of the Punjab Special Premises (Preservation) Ordinance, 1985 (Annex:A). The relevant provision of the said Ordinance is reproduced below-

"Special Premises' means any premises of historical, cultural or architectural value declared as such by the Government by notification and includes the land externally appurtenant thereto and the outer walls thereof."

2 It is further submitted that Murree Brewery Company Ltd., established in 1860 at Ghora Gali, near the hill station of Murree, holds immense historical and architectural significance. The brewery was founded to cater to the requirements of the British military and civilian personnel stationed in the region and were managed by the family of Edward Dyer, father of Colonel Reginald Dyer, infamously remembered for the tragic Jallianwala Bagh massacre of 13 April 1919 in Amnitsar. The

original brewery complex, conceived in Gothic architectural style, sustained extensive damage when it was set ablaze during the independence movement of 1947, leaving behind ruins that still evoke its colonial-era grandeur. The detail is as under-

1.	Location	Ghora Gali, Murree
2.	Total Area	709-19
3.	Khasra No.	1-10
4	Ownership	Provincial Government

Revenue record is enclosed as (Annexure-B)

3. In view of the above, it is proposed that Murree Bravery may be declared as "Special Premises" Under section 2(a) of the Punjab Special Premises (Preservation Ordinance 1985) to ensure the preservation of our Province's rich cultural legacy.
4. Chief Minister, Punjab may be pleased to approve to place the case before Provincial Cabinet for approval of proposal contained in Para-03 ante.

The matter to preserve the site have been initiated and cabinet will ultimately decide the same as reflected from the summary sent to Chief Minister Punjab. There is great need to preserve, protect and restore ancient monuments, as they hold historical, archeological and national importance.

7. While relying upon case law reported as Javed Ibrahim Paracha vs. Federation of Pakistan and others (PLD 2004 SC 482), Habibullah Energy Limited and another vs. WAPDA through Chairman and others (PLD 2014 SC 47), Wattan Party through President vs Federation of Pakistan through Cabinet Committee of Privatization, Islamabad and others (PLD 2006 SC 697), Dr. Akhtar Hassan Khan and others vs. Federation of Pakistan and others (2012 SCMR 455), AIR

1997 Supreme Court 2766 Rajeev Mankotia v. Secretary to President of India and **AIR 1999 Orissa 53** Suo motu: In the matter of Preservation of Antiquities in Criminal Trials, & Kamil Mumtaz vs. Province of the Punjab through Chief Secretary and others (PLD 2016 Lahore 699), this writ petition is allowed in above terms.

(Malik Muhammad Awais Khalid)
JUDGE

Approved for reporting.

Judge

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